☐ CIRCUIT COURT ☐ DISTRICT COURT OF MARYLAND FOR _____ City/County

Located at _____ Court Address

Case No. _____

Tracking # _____

STATE OF MARYLAND vs. _____ Defendant _____ DOB

PETITION FOR EXPUNGEMENT OF RECORDS
Acquittal, Dismissal, Not Guilty, or Nolle Prosequi
(LESS THAN 3 YEARS HAS PASSED SINCE DISPOSITION)

(In this petition, references are to the Annotated Code of Maryland, and references to "crime," "criminal action," and "civil offense or infraction" refer to any criminal or civil offense, other than a violation of the vehicle or traffic laws, ordinances, or regulations, that does not carry a possible sentence of imprisonment.)

1. (Check one of the following boxes) On or about _____ (Date), I was ☐ arrested, ☐ served with a summons, ☐ or served with a citation by an officer of the _____ (Law Enforcement Agency) at _____, Maryland, as a result of the following incident _____ _____.

2. I was charged with the offense of _____.

3. On or about _____ (Date), the charge was disposed of as follows (check all that apply, making sure each statement is true and correct):

☐ I was **acquitted** of the charge(s).

☐ the charge(s) was otherwise **dismissed**.

☐ I was found **not guilty**.

☐ a **nolle prosequi** was entered (without the requirement of drug or alcohol treatment).

4. ☐ The case was **transferred** to the juvenile court pursuant to Criminal Procedure Article, §§ 4-202 or 4-202.2. (Note: This petition must be filed in the court that issued the order to transfer. The expungement is only of the records in the criminal case, not the records in the juvenile court. See Criminal Procedure Article, § 10-106.)

5. ☐ The case began in one court and was **transferred** to another court other than the juvenile court. (Note: This petition must be filed in the court to which the case was transferred.)

I request the court to enter an Order of Expungement of all police and court records pertaining to the above arrest, detention, confinement, and/or charges.

I solemnly affirm under the penalties of perjury that the contents of this petition are true to the best of my knowledge, information, and belief, and that the charge to which this petition relates was not for any nonincarcerable violation of the vehicle laws of the State of Maryland, or any traffic law, ordinance, or regulation, nor is it part of a unit the expungement of which is precluded under Criminal Procedure Article, § 10-107.

Signature of Attorney	Attorney Number	Date	Signature of Defendant	Date
Printed Name			Printed Name	
Address			Address	
City, State, Zip		Telephone	City, State, Zip	Telephone
E-mail		Fax	E-mail	Fax

Form 4-503.2 GENERAL WAIVER AND RELEASE (Criminal Procedure §10-105)

I, _____ (Name), release and forever discharge _____ (Complainant), and the _____ (Law Enforcement Agency), all of its officers, agents, and employees, and any and all other persons from any and all tort claims which I may have for wrongful conduct by reason of my arrest, detention, or confinement on or about _____ (Date).

This General Waiver and Release is conditioned on the expungement of the record of my arrest, detention, or confinement and compliance with Code*, Criminal Procedure Article, § 10-105, as applicable, and shall be void if these conditions are not met.

WITNESS my hand and seal this _____ day of _____ (Month), _____ (Year).

_____ Witness Signature

_____ Printed Name of Witness

_____ Petitioner Signature (Seal)

Reset